

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S NOTICE OF
SUPPLEMENTAL AUTHORITY
(JKC3H8 v. COLTON)**

(CCP § 1005; CRC 3.1110)

Dept.: 302
Date: June 24, 2026

**PLAINTIFF'S NOTICE OF SUPPLEMENTAL AUTHORITY (JKC3H8
V. COLTON, (2013) 221 CAL.APP.4TH 468)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

**I. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING
LINE**

By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
this Court continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department
302, and directed: "All parties immediately to provide courtesy copies of their filings per SF Local

1 Rule 2.7B with a cover letter reflecting the new hearing date.” Plaintiff submits this Notice of
2 Supplemental Authority in conformity with that order, as the trial-court analog of Cal. Rules of
3 Court rule 8.254 (supplemental authority on appeal) and rule 3.1308, and pursuant to this Court’s
4 inherent authority under Code of Civil Procedure section 187 to consider published California
5 authority that bears on motions under submission or pending decision.

6 7 **II. THE THREE MOTIONS ON THE JUNE 24, 2026 LINE**

8 This Notice is tendered in connection with the following three motions set for hearing on June 24,
9 2026, 9:00 a.m., Department 302:

10 (A) Defendant CSAA Insurance Exchange’s Special Motion to Strike pursuant to CCP section
11 425.16, filed April 9, 2026 (seqs 015 to 018), continued to June 24, 2026 by the May 13,
12 2026 minute order.

13 (B) Defendant’s Demurrer to Plaintiff’s First Amended Complaint, filed April 13, 2026 (seqs 019
14 to 023), continued to June 24, 2026 by the May 13, 2026 minute order.

15 (C) Plaintiff’s Motion to Strike the May 6, 2026 Reply Declaration of Tyler J. O’Connell and
16 Exhibit A, filed May 8, 2026 (Transaction ID 79429443), continued to June 24, 2026 by the
17 May 13, 2026 minute order.

18 19 **III. SUPPLEMENTAL AUTHORITY: JKC3H8 V. COLTON**

20 Plaintiff respectfully draws the Court’s attention to the following published California Court of
21 Appeal authority:

22 **Full citation (first reference):** JKC3H8 et al. v. James Colton et al. (2013) 221 Cal.App.4th 468,
23 164 Cal.Rptr.3d 450 (Third Appellate District; Hoch, J.), filed November 13, 2013, review denied.

24 **Short cite:** JKC3H8 v. Colton, supra, 221 Cal.App.4th 468.

25 **Pin-cites:**

- 26 1. JKC3H8, 221 Cal.App.4th at pp. 471 to 472 (issue-and-holding passage).
- 27 2. JKC3H8, 221 Cal.App.4th at pp. 477 to 478 (express “subvert or avoid” limit).
- 28 3. JKC3H8, 221 Cal.App.4th at p. 479 (procedural posture; mootness conclusion).

IV. THE THREE NARROW PROPOSITIONS

The opinion establishes or recognizes three narrow propositions relevant to the motions on the June 24, 2026 calendar:

1. **Existence.** JKC3H8 is itself a published, controlling California Court of Appeal decision squarely addressing whether a plaintiff may amend a complaint in the face of a contemplated or pending anti-SLAPP motion. (JKC3H8, 221 Cal.App.4th at pp. 471 to 472.)
2. **Narrowing or mooted effect.** An amendment removing protected-activity allegations from the operative pleading is effective and renders an anti-SLAPP motion directed at the prior pleading moot. (JKC3H8, 221 Cal.App.4th at pp. 471 to 472, 479.)
3. **Pleading-management retention.** The opinion does not displace the trial court’s ordinary pleading-management authority under Code of Civil Procedure sections 472, 473, subdivision (a)(1), 576, and 425.16, subdivision (f). The “subvert or avoid” passage is a limit on amendment to defeat an anti-SLAPP ruling, not a wholesale withdrawal of the trial court’s discretion to manage pleadings under those sections. (JKC3H8, 221 Cal.App.4th at pp. 477 to 478.)

V. ISSUE MAP

The supplemental authority bears on the three motions as follows:

- **Anti-SLAPP / leave intersection.** JKC3H8 is the published California Court of Appeal authority directly addressing whether and how an amendment may narrow or moot an anti-SLAPP motion directed at the prior pleading. It bears on Defendant’s Special Motion to Strike (Item A above) and on any leave-to-amend posture cross-referenced in the consolidated record.
- **Prong-one gravamen sequencing.** The opinion’s recognition that protected-activity allegations can be removed by amendment informs the prong-one gravamen analysis required by Park v. Board of Trustees (2017) 2 Cal.5th 1057 and Baral v. Schnitt (2016) 1 Cal.5th 376, which already appears in the lodged briefing.

- 1 • **Pleading-management authority.** The express limit at pp. 477 to 478 confirms that the trial
2 court retains discretion under CCP sections 472, 473(a)(1), 576, and 425.16(f) to manage the
3 pleadings when an anti-SLAPP motion is on calendar.
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5 **VI. NO ORDER REQUESTED; NO RE-ARGUMENT**

6 This Notice is tendered as supplemental authority only. It introduces no new argument and reopens
7 no briefing. The argumentation related to the three motions remains as lodged in the operative
8 oppositions and bench materials designated by Plaintiff's Notice of Withdrawal and Designation
9 of Operative Oppositions (Transaction ID 79429280, filed May 8, 2026). Plaintiff cross-references
10 the April 28, 2026 Notice of Adverse Authority concerning JKC3H8 v. Colton (Transaction ID
11 79331632) for completeness of the record.

12 No order is requested by this notice.

14 **VII. SERVICE**

15 This Notice is served on Defendant's counsel of record (Mark G. Tapp, Tyler J. O'Connell, Mason
16 Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per CCP section 1010.6 and
17 Cal. Rules of Court, rule 1.21, with a Proof of Service (POS-050) filed contemporaneously.

19 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path